

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 23, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS - Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Mr. Cook moved to approve the Consent Agenda, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 9, 2017. Motion (per Consent Agenda) carried. Voting "yes" -- all members of the governing body.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Chevrolet) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6 and 2.4.1 (b) of the Cheyenne Unified Development Code (UDC), amending Section 2.1.1 for the purpose of creating a subdivision plat waiver process for limited lot line adjustments of platted properties. Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, Tract 71 and portions of Tracts 70 & 72, Allison Tracts, 2nd Filing and adjacent right of way, being situated in portions of the SW¹/₄, NW ¹/₄, and the NW¹/₄, SW¹/₄, of Section 8, T13N, R66W of the 6th Principal Meridian in Cheyenne, Laramie County, Wyoming (located northeast of the intersection of W. Allison Road and Walterscheid Blvd.). Bonnie Reider, adjacent property owner, spoke in opposition to the proposed annexation, noting that, if the ordinance is approved, her property would still be in the county, and citing concerns with only annexing a portion of Walterscheid Blvd. and responsibilities she may incur relating to snow removal and curb and gutter maintenance. Mr. Roybal moved to approve on second reading, seconded by Mr. Cook. Upon inquiry, Brad Emmons, AVI, agent for the applicant, provided information on general policy regarding annexation of roads to connect with those within the City closest to the property to be annexed, and Eric Hammer,

Development Department, verified that a representative from the South Cheyenne Water and Sewer District (SCWSD) was not in attendance at the meeting, therefore, he was unsure if their concerns had been resolved. Discussion included extending Walterscheid Blvd. to South Greeley Highway and comments made by the attorney for the SCWSD at the public hearing. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Sections 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR – Medium Density Residential to MR-2 – Medium Density Residential – Developing for Tract 71 and portions of Tracts 70 & 72, Allison Tracts, 2nd Filing located in the SW¼, of Section 8, T13N, R66W of the 6th Principal Meridian in Cheyenne, Laramie County, Wyoming (located near the intersection of W. Allison Road and Walterscheid Boulevard) to be known as Rorabaugh Subdivision. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Sections 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from LR-1 Low Density Residential--Established to NR-1 Neighborhood Residential -- Moderate Density for Lot 1, Block 5, Eastridge Third Filing subdivision, City of Cheyenne, Laramie County, Wyoming (located at 1800 Milton Drive). Mayor Orr advised the applicant had submitted a request that the ordinance, as well as affiliated Agenda Item #13 (Resolution for Final Plat for Eastridge Fifth Filing) be withdrawn from the agenda. Upon inquiry to City Council members and no objection being raised, Mayor Orr announced the ordinance and affiliated resolution were being withdrawn from the agenda.

ORDINANCE – 1st READING – Amending the Major Street Plan Official Map 2015, by adding the following roadway segments: Storey Boulevard extension from Highland Drive to Beckle Road and Van Buren Avenue extension from Opal Drive to Storey Boulevard – referred to Public Services Committee. (Sponsor - Mr. Roybal)

ORDINANCE – 1st READING – Amending Section 5.36.030, Public Addresses, Entertainment and Advertising on Streets, of Chapter 5.36, Circuses, Carnivals and Amusement Rides, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor - Mr. Johnson)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Eastridge Fifth Filing, a replat of Lot 1 Block 5 of ‘Eastridge Third Filing ’located at 1800 Milton Drive, City of Cheyenne, Laramie County, Wyoming (located at the southeast corner of Milton Drive and Durham Road). [Clerk’s note: As previously noted earlier in the meeting, the item was withdrawn from the agenda.]

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for South Ridge Addition, a replat of Lot 2, Block 1 and a 20’ wide alley of Estevan’s Subdivision, situate within a portion of the SW¼ NW¼ Section 34, T.14N., R.66W., 6th P.M., Cheyenne, Laramie

County, Wyoming (located south of and adjacent to Randy Road, west of Ridge Road). Patrice Gapen, property owner in the vicinity, spoke in opposition to the resolution citing concerns with the proposed low income housing project; another low income housing project planned for the area, and drainage, parking, traffic control and single point of access. Ms. Gapen encouraged either denial or postponement of the resolution. Bill Fehringer, Civil Engineering Professionals, Inc., agent for the applicant, provided information regarding the Final Plat, which will divide the lot into four parcels; Wyoming Community Development Authority's review and approval for the project; setbacks, oil pipeline located on an adjacent property; proposed detention pond, and access availability of Fire Department response vehicles to the site. He advised a site plan had been submitted to the City on this date. Mr. Roybal moved to adopt with staff recommendations #1 and 2, seconded by Mr. Johnson. Upon inquiry, Mr. Fehringer explained the detention pond would be located west of the existing chiropractor and restaurant businesses and provided information on proposed height of the buildings. Discussion included the detention pond; height of buildings; concern with traffic congestion and single access point, and comment that the site plan will hopefully contain remedies for concerns expressed. Upon request, Carol Intlekofer, City Clerk, read into the record the following two staff recommendations contained within the motion: Add a block number to the Final Plat map and add "Cheyenne" in the appropriate location of the title block on the Final Plat map. Seth Lloyd, Development Department, clarified that site plans do not come before City Council for approval. Motion failed. Voting "yes" -- Mr. Case, Mr. Laybourn, Mr. Roybal, Mr. Shanor and Mr. White. Voting "no" -- Mr. Cook, Mr. Johnson, Mr. Luna and Dr. Rinne. Mayor Orr confirmed she did not cast a vote. [Clerk's note: Following adjournment of the meeting and pursuant to requirement of City Code, which requires a majority affirmative vote of governing body members present for the item to pass (i.e. six "yes" votes), it was determined the resolution failed].

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2017 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#5827)

RESOLUTION – Designating the Sundays during 2017 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 a.m. the following day – referred to Finance Committee (Sponsor - Mr. Luna). Reporting for Finance Committee, Mr. Luna advised that due to timing involving the requested dates, the item was reviewed under other items for the agenda at the January 17, 2017 Finance Committee meeting, therefore, provisions of Title 2 of City Code had been met. Mr. Luna moved to adopt, seconded by Mr. Johnson. Kevin Georges, Laramie County Liquor Association, provided a brief history involving the annual request. Carol Intlekofer, City Clerk, clarified the dates of the four requested Sundays were: February 5th (Super Bowl Sunday), July 23rd (first weekend of Frontier Days), September 3rd (Labor Day weekend) and December 31st (New Year's Eve). Comment was made regarding City ordinance restriction of Sunday operating hours. Motion carried. Voting "yes" -- all members of the governing body. (#5828)

[CA] RESOLUTION – Adopting the Plan: Official Map for Storey Boulevard/Summit Road and Van Buren Avenue including 10% Design Plan – referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Rorabaugh Subdivision, a replat of Tract 71 and portions of Tracts 70 & 72, Allison Tracts, 2nd Filing, located in a portion of the SW ¼, NW ¼, of Section 8, T 13 N, R 66 W of the 6th Principal Meridian in Cheyenne, Laramie County, Wyoming (located near the intersection of W. Allison Road and Walterscheid Boulevard) – referred to Public Services Committee. (Sponsor - Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to accept and execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement for the Architectural Assistance Plan for the 2017 Historic Cheyenne Facade Improvement Program – referred to Finance Committee. (Sponsor - Mr. White)

[CA] RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction Account Grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the purpose of purchasing a fire engine – referred to Finance Committee. (Sponsor - Mr. Luna)

[CA] RESOLUTION – Amending Resolution #5820 approving a proposition to impose the 1% Specific Purpose Sales and Use Tax in Laramie County, State of Wyoming, for the exclusive purpose of funding specific purposes for specific amounts; the propositions to be voted on at a special election to be held May 2, 2017 – referred to Finance Committee. (Sponsors - Mr. Laybourn, Mr. Shanor, Mr. Luna and Dr. Rinne)

[CA] Memorandum of Understanding between the City of Cheyenne and the Pointe Homeowners Association to install and enhance landscaping along a portion of the Greater Cheyenne Greenway. Motion (per Consent Agenda) carried. (#6614)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the United States Marshals Service – Violent Offender Task Force – referred to Finance Committee.

[CA] Change Order to Bid #E-5-17 for furnishing 2000 95-gallon and 65-gallon automated refuse carts for the Sanitation Division (Solid Waste fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract No. 6592 between the City of Cheyenne, Parks and Recreation Department, and Reiman Corp to provide and install all-abilities playground and appurtenances at Cahill Park – referred to Finance Committee.

[CA] Contract Modification #1 to Contract No. 6553 between the City of Cheyenne and Reiman Corporation for partial release of the retainage for the 19th Street Rehabilitation, Phase III Project – referred to Finance Committee.

[CA] Consideration of Bid #S-4-17 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corp., Cheyenne, WY, for the Cheyenne Pumphouse Wetlands Project (1% Specific Purpose Sales and Use Tax) – referred to Finance Committee.

Under other business:

Mr. Johnson congratulated those who participated in the recent Ballet Wyoming's performance of Peter Pan; thanked the community for donated items toward several non-profit projects in which he is involved, and noted new and on-going community based projects currently in progress.

Upon inquiry by Mr. White, Mayor Orr provided an update on the former Police Department building with regard to process being discussed to dispose of the building, which will include public participation opportunity.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:48 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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